

US Importation, Customs & FDA Enforcement(1)

FDA Import Entry Submission Customs & FDA Filing Requirements

Title: FDA Entry Submission and Importer Requirements

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §801; 21 U.S.C. §381; FDA, Entry Submission FDA Import Process

Plain English Summary:

FDA-regulated products offered for import into the United States must be submitted through the U.S. import-entry process. The importer or customs broker must provide the required information to U.S. Customs and Border Protection (CBP) and, where applicable, transmit FDA-specific information such as the product code, manufacturer, country of origin, importer information, and required FDA compliance information.

For an Ayurvedic business, the **product's regulatory classification and intended use matter at the entry stage**. FDA's entry system uses HTS codes and FDA flags to determine whether FDA information must be submitted; for example, **FD2 covers FDA-regulated non-food products including drugs and cosmetics, while FD4 covers food products including dietary supplements and dietary ingredients**.

The Exact Legal/Regulatory Text:

FDA Entry Submission:

Products regulated by the FDA are subject to review by the FDA when they are offered for entry into the U.S. The FDA electronically reviews all FDA-regulated entries submitted through the U.S. Customs and Border Protection (CBP). FDA-regulated products imported into the U.S. must comply with all of the FDA's laws and regulations. The importer is responsible for making sure these products comply with all U.S. requirements. Products which do not comply with U.S. requirements at the time of importation are subject to refusal of admission.

FDA — Entry Submission Process:

The first step in any importation process begins with CBP.

When entry is made with CBP, importers or their customs brokers (entry filer) will include the Harmonized Tariff Schedule (HTS) code among the other declarations in the entry.

When the HTS code indicates that the product is FDA-regulated, submission of information to the FDA is required.

For FDA-regulated entries, FDA identifies information that may include:

Commodity and subtype

Product code

Product description

Country code identifying where the product was produced, sourced, grown, or harvested

Names and addresses of manufacturer, shipper, importer, delivered to party.

FDA Affirmation of Compliance (mandatory in some instances)

FDA HTS/FDA Flags:

FD2 | Regulated by the FDA, but is not food: Submit entry information | Medical Devices, Drugs, Tobacco, and Cosmetics

FD4 | Food product: Submit PN and entry information | ... dietary supplements and dietary ingredients.

Keywords/Triggers:

FDA entry submission, customs broker, CBP import entry, HTS code, FDA product code, FDA affirmation of compliance, FD2 cosmetics drugs, FD4 dietary supplements, Ayurvedic product import USA

FDA Import Basics Holding Products Pending Admissibility Determination

Title: Holding Imported FDA-Regulated Products Pending FDA Admissibility Determination

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §801; 21 U.S.C. §381; FDA Import Basics / FDA Import Process

Plain English Summary:

FDA-regulated products offered for import must be **held during the entry-review process** and should not be distributed into U.S. commerce until FDA determines that they are admissible. FDA states that imported products are reviewed against the same applicable requirements that apply to domestic products, and products that appear adulterated, misbranded, unapproved, or otherwise non-compliant may be refused admission.

For an Ayurvedic business, this means you should **not sell or distribute an imported product merely because it has arrived at a U.S. port**. The product should remain under appropriate control until the FDA import review is completed and admissibility is determined.

The Exact Legal/Regulatory Text:

FDA Import Basics:

During the entry review process, the imported products must be held and may not be distributed into U.S. commerce until the FDA has determined their admissibility.

FDA-regulated products are refused entry if they appear to be or have been found to be:

adulterated, meaning the product is contaminated, is not safe, unapproved, or does not otherwise meet applicable standards,

misbranded, meaning the labels contain false or misleading information, or the product is not registered and listed, if required,

forbidden or restricted for sale.

Products that do not comply with U.S. requirements may be refused admission. Refused products must be destroyed or exported from the United States within 90 days.

FDA Import Process:

Imported items should not be distributed into commerce until FDA has determined admissibility.

Keywords/Triggers:

FDA import hold, imported product release, FDA admissibility, Ayurvedic product import hold, FDA entry clearance, distribute before FDA release, imported product compliance, U.S. port FDA review

FDA Import Requirements Same Standards as Domestic Products

Title: Equal FDA Requirements for Imported and Domestic Products

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §801; 21 U.S.C. §381; FDA, Imports and Exports / FDA Import Process

Plain English Summary:

FDA-regulated products imported into the United States must comply with the **same applicable FDA laws and regulations as products manufactured domestically**. FDA may inspect products when they are offered for import and may refuse admission when a product appears to violate U.S. requirements.

For an Ayurvedic business, importing a product from India does **not create a separate or lower regulatory standard**. The product must satisfy the U.S. requirements applicable to its legal classification for example, drug, dietary supplement, or cosmetic.

The Exact Legal/Regulatory Text:

FDA Imports and Exports:

All FDA-regulated products imported into the United States are required to meet the same laws and regulations as domestic goods.

Imported foods must be pure, wholesome, safe to eat and produced under sanitary conditions; drugs and devices must be safe and effective; cosmetics must be safe for their intended use and properly labeled...

FDA-regulated products are subject to inspection when offered for import into the United States.

Products may be refused entry if they appear, from examination or otherwise, to violate FDA requirements.

FDA Import Process:

FDA-regulated products imported into the U.S. must comply with the same FDA laws and regulations that apply to domestic products.

Keywords/Triggers:

imported Ayurvedic product USA, same FDA standards, imported product compliance, foreign manufacturer FDA, U.S. import requirements, FDA import inspection, imported cosmetic compliance, imported drug compliance

FDA Enforcement Seizure of Violative Products

Title: FDA Seizure of Adulterated or Misbranded Products

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §304(a); 21 U.S.C. §334(a) Seizure

Plain English Summary:

FDA can seek the **seizure of products** that violate the FD&C Act, including products that are adulterated or misbranded. For an Ayurvedic business importing or selling products in the United States, this is an important enforcement provision because FDA can use seizure proceedings to remove violative products from commercial distribution.

The Exact Legal Text:

21 U.S.C. §334(a)(1):

Any article of food, drug, or cosmetic that is adulterated or misbranded when introduced into or while in interstate commerce or while held for sale (whether or not the first sale) after shipment in interstate commerce, or any article of food, drug, or cosmetic that is adulterated or misbranded within the meaning of section 342(a)(2)(C), 342(a)(2)(D), 342(a)(3), 342(a)(4), 342(a)(5), 342(a)(6), or 342(a)(7) of this title, may be seized by process pursuant to a warrant of the United States district court in whose jurisdiction the article is located.

Keywords/Triggers:

FDA seizure, product seizure, Ayurvedic product seizure, adulterated product, misbranded product, FD&C Act enforcement, 21 USC 334, FDA enforcement action